

7.	26CV0983	IN THE MATTER OF MOHAMMAD NAJAFPIR
Motion to Vacate Arbitration Award		

Petitioner filed this motion to vacate the arbitration award on April 7, 2026. The petition asserts three grounds for the request to vacate: (1) The Arbitrator refused to hear and consider material evidence (§1286.2(a)(5)); (2) The Arbitrator engaged in misconduct that substantially prejudiced Petitioner (§1286.2(a)(3)); and (3) The Arbitrator exceeded her powers by issuing findings not supported by the evidentiary record (§1286.2(a)(4)).

California Code, Code of Civil Procedure - CCP § 1286.2 states:

(a) Subject to [Section 1286.4](#), the court shall vacate the award if the court determines any of the following:

(1) The award was procured by corruption, fraud or other undue means.

(2) There was corruption in any of the arbitrators.

(3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator.

(4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted.

(5) The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title.

(6) An arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in [Section 1281.91](#) but failed upon receipt of timely demand to disqualify himself or herself as required by that provision. However, this subdivision does not apply to arbitration proceedings conducted under a collective bargaining agreement between employers and employees or between their respective representatives.

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The petition claims the arbitrator refused to hear or consider material evidence.

However, the facts presented in the petition do not purport that evidence was refused at all.

Rather the petition objects to the weight given to evidence which was admitted and considered by the arbitrator. The fact finder has the authority to give any weight or no weight to evidence presented. As such the petition is denied as to first ground.

Next, the petition claims the arbitrator engaged in misconduct which substantially prejudiced the Petitioner. The Petitioner has the burden of demonstrating there has been misconduct and that the misconduct improperly influenced or actually effect the award. Here, the Petitioner presents unsupported statements the arbitrator was conversing with the opposing party and/or counsel just prior to the start of the arbitration proceeding and that the arbitrator appeared to have familiarity with the lawyer for the opposing party. This evidence alone is insufficient. In *Comerica Bank v. Howsam*, 208 Cal. App. 4th 790 the court stated:

“Improper ex parte communications between an arbitrator and a litigant can serve as a basis for a corruption, fraud or other undue means finding. (*Maaso v. Signer, supra*, 203 Cal.App.4th at pp. 373–375, 136 Cal.Rptr.3d 853.) In the case of an ex parte communication between an arbitrator and an attorney, our colleagues in Division Six of this appellate district described why it was inappropriate to vacate the arbitration award: “We agree the arbitrator should have advised appellants' counsel of the ex parte communication and that he would be issuing an amended arbitration award resolving the stop notice claim. In the absence of a showing that the arbitrator was improperly influenced or actually considered evidence outside the original arbitration proceedings such that appellants needed a further opportunity to be heard on the stop notice claim, appellants cannot demonstrate that the amended award was procured by corruption, fraud, undue means, or misconduct of the arbitrator within the meaning of section 1286.2, subdivisions (a), (b) or (c).” (*A.M. Classic Const., Inc. v. Tri-Build Development Co.* (1999) 70 Cal.App.4th 1470, 1476, 83 Cal.Rptr.2d 449.) *Comerica Bank v. Howsam* (2012), 208 Cal. App. 4th 790, 825

As such, the court denies the petition on the second ground.

The third ground for the petition is that the award was not supported by the evidence.

The arguments and supporting documentation in the petition ask the court to reweigh the evidence. The court is not permitted to reweigh evidence in order to vacate an arbitration award and as such the petition is denied on the third ground as well.

TENTATIVE RULING #7: PETITIONER'S MOTION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.